

 Internal Case Management System Worksheet - Case Closing					Top Allegation USE OF FORCE - LEVEL 3	Group G54-GROUP 54 - FORCE Date of This Report 02/15/2019	
Date Reported 08/13/2018	Date Assigned 08/13/2018	IAB Log No. 2018-31608	Case No. (G54) FI-2018-1507	Folder Type FORCE INVESTIGATION	Preliminary Case Type FORCE INVESTIGATION	Follow-Up No.	Worksheet Tracking No. 3562460

Topic/Subject (Case Closing) CASE CLOSING (UNSUBSTANTIATED)	Activity Date 02/15/2019	Activity Time 08:20
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Referred to Group -	Conferred With	Next Review Date
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Closing Statement

Case #
FI-2018-1507

Log #
2018-31608

Subject Officer (s):
PO Deanna Collins, Tax # 941197, SRG 2
Date of Appointment: 07/10/2006
Probation (at the time of incident): No
Current Duty Status: Active (Currently out long term sick)

PO Patrice Barolette, Tax # 932300, Bronx Court Section (formerly assigned to SRG 2)
Date of Appointment: 07/01/2003
Probation (at the time of incident): No
Current Duty Status: Active

Date Case received:
August 16, 2018

Date of Occurrence:
August 12, 2018

Administrative Status of Limitations Expires:
February 12, 2020

Classification:
C-2

Investigator:
Detective Pollyann Dixon, Tax # 941434

Team Leader:
LT Steven Ettlinger, Tax # 901519

Overall Case Disposition:
Unsubstantiated

Details: Log # 2018-31608
Sgt. Lopez-Maceda called the Command Center and stated that PO Deanna Collins and Patrice Barolette observed [REDACTED] with what appeared to be a marijuana cigarette, but was later found out to be crack-cocaine. Upon approach, [REDACTED] ingested the narcotics and began to flee. The officers gave chase, and were able to catch the perpetrator and forcibly take him to the ground. Once in handcuffs [REDACTED] began to complain that the officers re-injured his hand that he had surgery on previously. [REDACTED] was transported to North Central Bronx Hospital and was diagnosed with a fractured left hand and treated and released. Sgt. Lopez-Maceda provided TRI [REDACTED] PO Collins sustained a sprained wrist, and was treated at North Central Bronx Hospital. Callout # 2018-31608 was conducted by investigators from Group 54.

Identification and interview of the Complainant:
The complainant [REDACTED] who resides at [REDACTED] was interviewed by investigators from Group 9 on August 13, 2018 at 0440 hours.

██████████ stated while standing at a bus stop located on E 170th street between Findlay and College Avenue he was talking to another male when two uniformed officers approached that male and grabbed him. ██████████ stated that he did not know the male's name. ██████████ described the officers as one male black and one female black. The male officer told ██████████ to place his hands on the bus stop and began to search him. After the search, ██████████ was placed in handcuffs and was seated on the floor. ██████████ stated that he is still unsure as to why he was arrested, because he did not do anything wrong and he did not have anything illegal on him. ██████████ stated that he told the male officer that his left hand was in the process of healing from a previous injury. He stated that he broke his left hand from a previous fall, and had just gotten the pins removed 6 days prior. ██████████ stated that while he was handcuffed and sitting on the ground, the male officer began kicking his left hand. ██████████ stated that he was screaming in pain, but the officer did not stop. The same officer yanked him up off the ground and started twisting his hands. ██████████ was then placed in the RMP and brought back to the precinct. At the precinct, ██████████ told the desk Sergeant what the male officer had done, and then requested to go to the hospital because his left hand was in a lot of pain.

██████████ was re-interviewed by investigators from Group 54 on August 13, 2018 at 1240 hours. ██████████ reiterated the version of the interview given to Group 9 investigators. ██████████ stated that the interaction with officers occurred in front of a Barbershop and not at the bus stop. ██████████ stated that the female officer was not using any force against him, she was dealing with his friend ██████████. ██████████ stated that a fractured left hand is the only injury he sustained during this confrontation. ██████████ stated that while he was handcuffed and sitting on the ground, the male officer began kicking and stepping on his left hand. ██████████ stated that he was screaming in pain, but the officer did not stop. The same officer yanked him up off the ground and started twisting his hands. ██████████ stated that he was not resisting and he had no prior interactions with the subject officers. ██████████ stated that there was approximately six (6) more uniformed officers on scene who witnessed the incident. ██████████ stated that he cannot describe any officers. ██████████ stated that there were no incidents during transport to or inside the precinct. ██████████ stated that his prior injury to his left hand happened approximately between June 15 and June 30, and he was treated at Lincoln Hospital. ██████████ signed HIPAA forms for this incident and for the prior fracture.

A background check on ██████████ revealed that he has been ██████████

IAPRO: No History

ICMS: No History

CCRB:

C201806967- Current Case, Closed on 12/05/2018- Uncooperative Complainant.

200905656- Unfounded, 04/10/2009 (Complainant stated that the officer assaulted him).

Identification and interview of Witness:

The witness ██████████ who resides at ██████████ was interviewed by investigators from Group 54.

██████████ stated prior to the encounter with the police, he and his brother in law, complainant ██████████ walked to the bus stop. He stated he was going home on the bus and ██████████ walked with him there and was waiting for the bus to arrive. He stated he was smoking a cigar but did not know if ██████████ was smoking anything. He stated they had been there for approximately five (5) to seven (7) minutes when the police drove up and jumped out of the car.

He stated the officers approached them and immediately began questioning them. He stated after a short time the officer put him in handcuffs and then out of the corner of his eye he saw the officer "roughing up" his brother in law. He said he meant the officers were pushing his brother in law around. He said eventually the officers took ██████████ to the ground and attempted to place him in handcuffs. He stated his brother in law wasn't resisting arrest but the officers had their knees in his back and were trying to pull his arms behind his back. ██████████ stated the officers did not punch, kick or strike ██████████ and eventually were able to get him in handcuffs.

██████████ said when ██████████ was handcuffed, the officers pulled him up by the handcuffs and were raising his arms up by the handcuffs. ██████████ said at that point ██████████ began screaming in pain. He said ██████████ was yelling that the officers were going to break his arms. ██████████ stated ██████████ wasn't resisting the officers or fighting at this point.

██████████ said he was then put into a police car so he was unable to see what next happened to ██████████. He stated eventually he himself was released from handcuffs and sent away by the officers. He stated he then left.

██████████ said the whole incident started because once of the officers claimed to have found a small aluminum wrapper which he put on the ground and then couldn't find. ██████████ stated he did not know what was in the wrapper and did not know where the officer found it. Furthermore, ██████████ stated he had no idea what happened to it.

Canvass for witness and video:

A canvass was conducted in the vicinity of the incident location for independent witnesses and video recording.

There was one (1) video recovered from ██████████:

The video retrieved is a significant distance away and is dark and blurry. No participant can be clearly identified from the video. There is also a wall obstructing the view of any interactions that MOS had with the [REDACTED]. The video shows the RMP pull up, Officers exit and approach what appears to be two (2) males. The Officers can be seen utilizing flashlights to see. Two (2) additional RMP's pull up on scene. One additional RMP pulls up. Officers appear to be using their flashlights to search the area where the males were stopped. A prisoner appears to be escorted into an RMP. RMP's begin leaving the location. There is no misconduct observed.

Identification of Subject Officer:

In the initial log PO Collins and PO Barolette were identified as the subject officers by the Arrest Report and Roll Call. PO Barolette was also the arresting officer.

Review of Department Records:

>Threat Resistance or Injury Reports:

PO Deanna Collins [REDACTED]

Actions by MOS: Forcible Take Down

Reason for Force : Fleeing Suspect, Overcome Resistance or Aggression

Injury Sustained By MOS: Minor Swelling, Complain of substantial Pain, Sprain left wrist and hand

PO Patrice Barolette [REDACTED]

Actions by MOS: Forcible Take Down

Reason for Force : Fleeing Suspect, Overcome Resistance or Aggression

>Stop Report # [REDACTED]

Basis for Stop/Identification/Suspected Crime: [REDACTED] Self-Initiated, Crime Suspected: CPW

Person Stopped: Sex: Male, Age: 46, Race: White Hispanic, Weight: 170lbs, Height(FT): 6

Total No. of other persons stopped: 2

Stop/Questioned/Frisked?: Yes

Was Suspect Arrested?: Yes

Arrest # [REDACTED]

Narrative: "At T/P/O def. was stopped and frisked for trying to flee and conceal objects at the site of a/o"

Was Person frisked: Yes

Was person Searched?: Yes

Was Weapon Found?: No

Was Other Contraband Found?: Yes: Alleged controlled substance which def. had swallowed

Reporting Officer: PO Barolette, Patrice, Tax # 932300, SRG 2

>Stop Report # [REDACTED]

Basis for Stop/Identification/Suspected Crime: [REDACTED] Self-Initiated, Crime Suspected: CPW

Person Stopped: Sex: Male, Age: 36, Race: White Hispanic, Weight: 179lbs, Height(FT): 5

Total No. of other persons stopped: 2

Stop/Questioned/Frisked?: Yes

Was Suspect Arrested?: No

Narrative: "At T/P/O def. was stopped and frisked because at the site of officer he was trying to conceal object and flee the scene."

Was Person frisked: Yes

Was person Searched?: Yes

Was Weapon Found?: No

Was Other Contraband Found?: No

Reporting Officer: PO Barolette, Patrice, Tax # 932300, SRG 2

>Line of Duty Injury Report- Med Div. Control#4173

PO Deanna Collins

Diagnosis: Sprain, left wrist and hand

PO Collins informed Supervisor that while attempting to effect a lawful arrest of [REDACTED] that appeared to be using drugs in front of [REDACTED] did attempt to flee by running away from the location. PO Collins did grab on to [REDACTED] and tangled her left hand on the his property, therefore spraining her left wrist and hand.

>Arrest # - [REDACTED]

ARRESTING OFFICER:

The report stated that [REDACTED]

Medical Records- Review of [REDACTED] medical records from Lincoln Hospital on June 19, 2018. [REDACTED] was arrested on August 12, 2018, and he was hospitalized and treated for the same injury (fracture left hand) on June 19, 2018.

[REDACTED] medical records from North Central Bronx Hospital on August 13, 2018 shows that he was diagnosed with a

fracture to the left ring and pinky finger. However, there was no comparison because of the two different hospitals.

Computer and Related background checks:

A background check was conducted on PO Deanna Collins, Tax # 941197, SRG 2, disclosed that she was appointed on July 10, 2006, PO Collins has no monitoring records.

ICMS:

1 Force Incidents

FI-2018-1507 08/12/18 Use of Force Level 3- Current Investigation

CPI:

12 Events

Background Check-06

Internal Investigation-04- Report Incomplete/Invoice Discrepancy (2)Disputed Summons/Missing Property (Unsubstantiated)

Department Auto Accident-01

Loss of ID Card-01

IAPRO:

No prior force case on file

CCRB:

C201806967- Current Case, Closed on 12/05/2018- Uncooperative Complainant.

A background check was conducted on PO Patrice Barolette, Tax # 932300, SRG 2, disclosed that he was appointed on July 1, 2003. PO Barolette has no monitoring records.

ICMS:

3 Force Incidents

FI-2018-1507 08/12/18 Use of Force Level 3- Current Investigation

FI-2017-0067 09/07/2017 Use of Force Level 2- Fail to Prepare Report-Stop Question Frisk Report-Memobook

Incomplete/Improper-Partially Substantiated(complainant states that the officer braced him against the wall and tried to go into his pockets)

C-2017-0265 05/20/17 Use of Force Level 3-Unsubstantiated(PO Barolette is a witness in this case. Complainant stated that officer pushed him down to the ground)

CPI:

7 Events

Background Check -02

Internal Investigation-04-Fail to Properly Search (pending)/Fail to prepare report (Partially Substantiated)/Missing property (I&I closed)/ Fail to Provide Name(Unsubstantiated)

CIV Suit Defendant ID-01

IAPRO:

No prior force case on file

CCRB:

3 Force cases on file

C201806967- Current Case, Closed on 12/05/2018- Uncooperative Complainant.

200512488 10/17/05-Force-Physical Force- Unsubstantiated (complainant stated that the officer threw him against the wall and searched him)

200616126 11/28/06-Force-Exonerated (Complainant stated that the officer slapped and punched him)

201204573 03/27/12-Force-Uncooperative Complainant (Complainant stated that the officer punch him in the face and mace him)

Conferrals Conducted:

>A conferral was made with ADA Wiczynski in regards to conducting a PG Hearing for this case. ADA Wiczynski declined prosecution for PO Collins and PO Barolette.

>IAB Intel RFI 18-1040 / 18-31608 determined that PO Deanna Collins SRG2 and PO Patrice Barolette SRG2 both officers are described as □very hard workers□ who are well liked by their peers and supervisors are both known to carry their weight, and they have no negative rumors/perceptions about them. It is unlikely that they would engage in misconduct, and they are not □heavy handed□.

>A conferral was made with Beverly Walker of the NYC Comptrollers Office, who reported that she has not been able to find any pending or current claims filed against the City regarding [REDACTED]

>A conferral was made with DI Parente in regards to a P.G. Hearing for PO Collins, Tax # 941197. DI Parente stated due to PO Collins out on long term pregnancy sick, this case will be submitted for closing without a P.G. hearing of PO Collins.

>Criminal Case Status:

Proactive Measures: There were no SAE or SWE conducted.

Patrol Guide 206-13 Hearing:

PO Barolette was interviewed on January 9, 2019 as a subject officer. PO Barolette stated that he worked on August 12, 2018, [REDACTED] tour in uniform SRG 2 patrol with PO Collins assigned to marked RMP # 5559. PO Barolette stated that they responded to a pick up job of a Suspicious Drug Use in front of [REDACTED] PO Barolette stated that they observed [REDACTED] with drugs in his possession standing at the bus stop, at said time he made a U-turn to investigate. PO Barolette stated that when [REDACTED] saw them he removed drugs from his pocket and threw it onto the sidewalk. PO Barolette stated that he then jumped out of the RMP, grabbed [REDACTED] went through his pockets and retrieved a needle from his back pocket. PO Barolette stated that he also retrieved a piece of foil paper and he placed it on top of a staircase. PO Barolette stated that [REDACTED] then removed the piece of foil paper and swallowed it. PO Barolette stated that he then tried to handcuff [REDACTED] and he started to resist by folding his arms preventing him from handcuffing him. PO Barolette stated that he grabbed his arms, pulled it out and placed the cuffs on him and at some point they took him down to the ground while he was cuffed. PO Barolette stated that they called for another sector at that time. PO Barolette stated that a Sergeant and other officers responded on the scene when [REDACTED] was already in handcuffs. PO Barolette stated he did not kick or twist [REDACTED] hands nor did he observe PO Collins do so. PO Barolette stated that [REDACTED] never made any statements during the arrest. PO Barolette stated that another male, [REDACTED] was also stopped at the location, however, he was not arrested because he did not observe him with any drugs. PO Barolette stated that they transported [REDACTED] back to the station house in their RMP. PO Barolette stated that [REDACTED] complained of his arm being injured at the stationhouse and EMS transported him to the hospital accompanied by another unit. PO Barolette stated that he learned of [REDACTED] old injury (broken hand) after he returned from the hospital. PO Barolette stated that PO Collins suffered an injured wrist during the arrest and she went LOD.

Supervisory Deficiencies: There were no Supervisory deficiencies observed in this case.

Conclusion:

This investigation disclosed that on August 12, 2018, Sgt. Lopez-Maceda called the Command Center and reported that [REDACTED] was arrested for [REDACTED] PO Deanna Collins and PO Patrice Barolette observed [REDACTED] with what appeared to be a marijuana cigarette, but was later found out to be crack-cocaine. Upon approach, [REDACTED] ingested the narcotics and began to flee. The officers gave chase and were able to catch him and forcibly take him to the ground. Once in handcuffs [REDACTED] began to complain that the officers re-injured his hand that he had surgery on previously. [REDACTED] was transported to North Central Bronx Hospital and was diagnosed with a fractured left hand, treated and released. PO Collins sustained a sprained wrist, and was treated at North Central Bronx Hospital. [REDACTED] stated in an interview with Group 54 investigators that he was placed in handcuffs and seated on the floor. [REDACTED] stated that he told the male officer that his left hand was in the process of healing from a previous injury. He stated that he broke his left hand from a previous fall, and had just gotten the pins removed 6 days prior. [REDACTED] stated that while he was handcuffed and sitting on the ground, the male officer began kicking his left hand. [REDACTED] stated that he was screaming in pain, but the officer did not stop. The same officer yanked him up off the ground and started twisting his hands. [REDACTED] who was with [REDACTED] at the time of arrest, was interviewed and stated prior to the encounter with the police, he and his brother in law, [REDACTED] walked to the bus stop. He stated he was going home on the bus and [REDACTED] walked with him there and was waiting for the bus to arrive. He stated he was smoking a cigar but did not know if [REDACTED] was smoking anything. He stated they had been there for approximately five (5) to seven (7) minutes when the police drove up and jumped out of the car. He stated the officers approached them and immediately began questioning them. He stated after a short time the officer put him in handcuffs and then out of the corner of his eye he saw the officer "roughing up" his brother in law. He said he meant the officers were pushing his brother in law around. He said eventually the officers took [REDACTED] to the ground and attempted to place him in handcuffs. He stated his brother in law wasn't resisting arrest but the officers had their knees in his back and were trying to pull his arms behind his back. [REDACTED] stated the officers did not punch, kick or strike [REDACTED] and eventually were able to get him in handcuffs. [REDACTED] stated when [REDACTED] was handcuffed, the officers pulled him up by the handcuffs and were raising his arms up by the handcuffs. [REDACTED] said at that point [REDACTED] began screaming in pain. He said [REDACTED] was yelling that the officers were going to break his arms. [REDACTED] stated that [REDACTED] wasn't resisting the officers or fighting at this point. [REDACTED] said he was then put into a police car so he was unable to see what next happened to [REDACTED] He stated eventually he himself was released from handcuffs and sent away by the officers. He stated he then left. [REDACTED] said the whole incident started because one of the officers claimed to have found a small aluminum wrapper which he put on the ground and then couldn't find. [REDACTED] stated he did not know what was in the wrapper and did not know where the officer found it. Furthermore, [REDACTED] stated he had no idea what happened to it. PO Barolette stated in a PG interview that they observed [REDACTED] with drugs in his possession standing at the bus stop, at said time he made a U-turn to investigate. PO Barolette stated that when [REDACTED] saw them he removed drugs from his pocket and threw it onto the sidewalk. PO Barolette stated that he then jumped out of the RMP, grabbed [REDACTED] went through his pockets and retrieved a needle from his back pocket. PO Barolette stated that he also retrieved a piece of foil paper and he placed it on top of a staircase. PO Barolette stated that [REDACTED] then removed the piece of foil paper and swallowed it. PO Barolette stated that he then tried to handcuff [REDACTED] and he started to resist by folding his arms preventing him from handcuffing him. PO Barolette stated that that he grabbed his arms, pulled them out and placed the cuffs on him. PO Barolette stated that they called for another sector at that time. PO Barolette stated that a Sergeant and other officers responded on the scene when [REDACTED] was already in handcuffs. PO Barolette stated he did not kick or twist [REDACTED] hands nor did he observe PO Collins do so. PO Barolette stated that he learned of [REDACTED] old injury (broken hand) after he returned from the hospital. The video retrieved from the arrest location is a significant distance away and is dark and blurry. No participant can be clearly identified from the video. There is also a wall obstructing the view of any interactions that MOS had with the [REDACTED]. The video shows the RMP pull up, Officers exit and approach what appears to be two (2) males. The Officers can be seen utilizing flashlights to see. Two (2) additional RMP's

pull up on scene. One additional RMP pulls up. Officers appear to be using their flashlights to search the area where the males were stopped. A prisoner appears to be escorted into an RMP. RMP's begin leaving the location. This investigation is unable to prove or disprove if the force utilized to apprehend [REDACTED] was unnecessary or excessive. As such, this case is closed as Unsubstantiated.

Subjects Involved

Name	Status	Sex	Race	Dob
932300 PATRICE BAROLETTE POM (138- STRATEGIC RESP GRP 2 BRONX)	UNIFORM MEMBER OF SERVICE	MALE	BLACK	[REDACTED]

Allegations

1	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	Arrest Effected	CP-Injured Prior to PD Custody	08/13/2018	04 - Info. and Intelligence	01/30/2019
	Comments This investigation disclosed that on August 12, 2018, [REDACTED] sustained an injury (fractured left hand) in connection with arrest # [REDACTED]. A review of medical records from Lincoln Hospital on June 19, 2018 prior to [REDACTED] arrest on August 12, 2018 notes that he was treated and released for a fractured left hand. [REDACTED] medical records from North Central Bronx Hospital on August 13, 2018 shows that he was treated and released for the same old injury (fracture to the left ring and pinky finger). As such, the allegation of Prisoner Incident-Injured Prior NYPD Custody will be closed as Information and Intelligence.					
2	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Use of Force - Level 3	Arrest Effected	Force Investigation Notification	08/13/2018	04 - Info. and Intelligence	01/30/2019
	Comments This investigation disclosed that on August 12, 2018, based on Use of Force investigation responsibilities and reporting guide this matter was investigated by the Internal affairs Bureau as Use of Force-Level 3 due to [REDACTED]. [REDACTED] was treated and released for injuries sustained (fractured left hand) in connection with Arrest # [REDACTED]. TRI report # [REDACTED] were prepared in regards to this incident. As such, the allegation of Use of Force-Level 3 will be closed as Information and Intelligence.					
3	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	FADO Force - Physical Force	Arrest Effected	O-Other	08/15/2018	04 - Info. and Intelligence	01/30/2019
	Comments Investigated by CCRB under CCRB Case # 2018-06967.					
4	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Force - Physical Force	Arrest Effected	O-Other	08/15/2018	12 - Unsubstantiated	01/30/2019
	Comments This investigation disclosed that on August 12, 2018, Sgt. Lopez-Maceda called the Command Center and reported that [REDACTED] was arrested for [REDACTED]. PO Deanna Collins and PO Patrice Barolette observed [REDACTED] with what appeared to be a marijuana cigarette, but was later found out to be crack-cocaine. Upon approach, [REDACTED] ingested the narcotics and began to flee. The officers gave chase and were able to catch him and forcibly take him to the ground. Once in handcuffs [REDACTED] began to complain that the officers re-injured his hand that he had surgery on previously. [REDACTED] was transported to North Central Bronx Hospital and was diagnosed with a fractured					

left hand, treated and released. PO Collins sustained a sprained wrist, and was treated at North Central Bronx Hospital. [REDACTED] stated in an interview with Group 54 investigators that he was placed in handcuffs and seated on the floor. [REDACTED] stated that he told the male officer that his left hand was in the process of healing from a previous injury. He stated that he broke his left hand from a previous fall, and had just gotten the pins removed 6 days prior. [REDACTED] stated that while he was handcuffed and sitting on the ground, the male officer began kicking his left hand. [REDACTED] stated that he was screaming in pain, but the officer did not stop. The same officer yanked him up off the ground and started twisting his hands. [REDACTED] who was with [REDACTED] at the time of arrest, was interviewed and stated prior to the encounter with the police, he and his brother in law, [REDACTED] walked to the bus stop. He stated he was going home on the bus and [REDACTED] walked with him there and was waiting for the bus to arrive. He stated he was smoking a cigar but did not know if [REDACTED] was smoking anything. He stated they had been there for approximately five (5) to seven (7) minutes when the police drove up and jumped out of the car. He stated the officers approached them and immediately began questioning them. He stated after a short time the officer put him in handcuffs and then out of the corner of his eye he saw the officer "roughing up" his brother in law. He said he meant the officers were pushing his brother in law around. He said eventually the officers took [REDACTED] to the ground and attempted to place him in handcuffs. He stated his brother in law wasn't resisting arrest but the officers had their knees in his back and were trying to pull his arms behind his back. [REDACTED] stated the officers did not punch, kick or strike [REDACTED] and eventually were able to get him in handcuffs. [REDACTED] said when [REDACTED] was handcuffed, the officers pulled him up by the handcuffs and were raising his arms up by the handcuffs. [REDACTED] said at that point [REDACTED] began screaming in pain. He said [REDACTED] was yelling that the officers were going to break his arms. [REDACTED] stated [REDACTED] wasn't resisting the officers or fighting at this point. [REDACTED] said he was then put into a police car so he was unable to see what next happened to [REDACTED]. He stated eventually he himself was released from handcuffs and sent away by the officers. He stated he then left. [REDACTED] said the whole incident started because one of the officers claimed to have found a small aluminum wrapper which he put on the ground and then couldn't find. [REDACTED] stated he did not know what was in the wrapper and did not know where the officer found it. Furthermore, [REDACTED] stated he had no idea what happened to it. PO Baroletto stated in a PG interview that they observed [REDACTED] with drugs in his possession standing at the bus stop, at said time he made a U-turn to investigate. PO Baroletto stated that when [REDACTED] saw them he removed drugs from his pocket and threw it onto the sidewalk. PO Baroletto stated that he then jumped out of the RMP, grabbed [REDACTED] went through his pockets and retrieved a needle from his back pocket. PO Baroletto stated that he also retrieved a piece of foil paper and he placed it on top of a staircase. PO Baroletto stated that [REDACTED] then removed the piece of foil paper and swallowed it. PO Baroletto stated that he then tried to handcuff [REDACTED] and he started to resist by folding his arms preventing him from handcuffing him. PO Baroletto stated that that he grabbed his arms, pulled them out and placed the cuffs on him. PO Baroletto stated that they called for another sector at that time. PO Baroletto stated that a Sergeant and other officers responded on the scene when [REDACTED] was already in handcuffs. PO Baroletto stated he did not kick or twist [REDACTED] hands nor did he observe PO Collins do so. PO Baroletto stated that he learned of [REDACTED] old injury (broken hand) after he returned from the hospital. The video retrieved from the arrest location is a significant distance away and is dark and blurry. No participant can be clearly identified from the video. There is also a wall obstructing the view of any interactions that MOS had with the [REDACTED]. The video shows the RMP pull up, Officers exit and approach what appears to be two (2) males. The Officers can be seen utilizing flashlights to see. Two (2) additional RMP's pull up on scene. One additional RMP pulls up. Officers appear to be using their flashlights to search the area where the males were stopped. A prisoner appears to be escorted into an RMP. RMP's begin leaving the location. Based on the review of the video from the incident location, this investigation is unable to prove or disprove if the force utilized to apprehend [REDACTED] was unnecessary or excessive. As such, the Allegation Force-Physical Force will be closed as Unsubstantiated.

Name 941197 DEANNA COLLINS POF (138- STRATEGIC RESP GRP 2 BRONX)	Status UNIFORM MEMBER OF SERVICE	Sex FEMALE	Race BLACK	Dob [REDACTED]
Allegations				
1 Full Allegation Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	Classification Arrest Effected	Allegation Index CP-Injured Prior to PD Custody	Allegation Date 08/13/2018	Finding 04 - Info. and Intelligence
				Finding Date 01/30/2019
Comments This investigation disclosed that on August 12, 2018, [REDACTED] sustained an injury (fractured left hand) in connection with arrest # [REDACTED]. A review of medical records from Lincoln Hospital on June 19, 2018 prior				

	to [REDACTED] arrest on August 12, 2018 notes that he was treated and released for a fracture left hand. [REDACTED] [REDACTED] medical records from North Central Bronx Hospital on August 13, 2018 shows that he was treated and released with the same old injury (fracture to the left ring and pinky finger). As such, the allegation of Prisoner Incident-Injured Prior NYPD Custody will be closed as Information and Intelligence.				
2	Full Allegation Aided MOS - Injured - Result of Taking Police Action	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 08/13/2018	Finding 04 - Info. and Intelligence Finding Date 01/30/2019
	Comments This investigation disclosed that on August 12, 2018, PO Collins was treated at North Central Hospital for a Sprained left wrist and hand in connection with Arrest [REDACTED]. Line of Duty Paperwork was prepared and issued Medical Division Control#4173 to document her injuries. PO Collins sustained her injuries while attempting to effect a lawful arrest of [REDACTED]. [REDACTED] did attempt to flee by running away from the location. PO Collins did grab onto [REDACTED] and tangled her left hand on his property, causing a sprained left wrist and hand. As such, the allegation of MOS Aided-Injured-Other will be closed as Information and Intelligence				
3	Full Allegation Use of Force - Level 3	Classification Arrest Effected	Allegation Index Force Investigation Notification	Allegation Date 08/13/2018	Finding 04 - Info. and Intelligence Finding Date 01/30/2019
	Comments This investigation disclosed that on August 12, 2018, based on Use of Force investigation responsibilities and reporting guide this matter was investigated by the Internal affairs Bureau as Use of Force-Level 3 due to [REDACTED]. [REDACTED] was treated and released for injuries sustained (fracture left hand) in connection with Arrest # [REDACTED]. TRI report [REDACTED] were prepared in regards to this incident. As such, the allegation of Use of Force-Level 3 will be closed as Information and Intelligence.				
4	Full Allegation FADO Force - Physical Force	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 02/12/2019	Finding 04 - Info. and Intelligence Finding Date 02/12/2019
	Comments Investigated by CCRB under CCRB Case # 2018-06967.				
5	Full Allegation Force - Physical Force	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 02/12/2019	Finding 01 - Exonerated Finding Date 02/12/2019
	Comments This investigation disclosed that on August 12, 2018, Sgt. Lopez-Maceda called the Command Center and reported that [REDACTED] was arrested for [REDACTED]. PO Deanna Collins and PO Patrice Barolette observed [REDACTED] with what appeared to be a marijuana cigarette, but was later found out to be crack-cocaine. Upon approach, [REDACTED] ingested the narcotics and began to flee. The officers gave chase and were able to catch him and forcibly take him to the ground. Once in handcuffs [REDACTED] began to complain that the officers re-injured his hand that he had surgery on previously. [REDACTED] was transported to North Central Bronx Hospital and was diagnosed with a fractured left hand, treated and released. PO Collins sustained a sprained wrist, and was treated at North Central Bronx Hospital. [REDACTED] stated in an interview with Group 54 investigators that he was placed in handcuffs and seated on the floor. [REDACTED] stated that he told the male officer that his left hand was in the process of healing from a previous injury. He stated that he broke his left hand from a previous fall, and had just gotten the pins removed 6 days prior. [REDACTED] stated that while he was handcuffed and sitting on the ground, the male officer began kicking his left hand. [REDACTED] stated that he was screaming in pain, but the officer did not stop. The same officer yanked him up off the ground and started twisting his hands. [REDACTED] who was with [REDACTED] at the time of arrest, was interviewed and stated prior to the encounter with the police, he and his brother in law, [REDACTED] walked to the bus stop. He stated he was going home on the bus and [REDACTED] walked with him there and was waiting for the bus to arrive. He stated he was smoking a cigar but did not know if [REDACTED] was smoking anything. He stated they had been there for approximately five (5) to seven (7) minutes when the police drove up and jumped out of the car. He stated the officers approached them and immediately began questioning them. He stated after a short time the officer put him in handcuffs and then out of the corner of his eye he saw the officer "roughing up" his brother in law. He said he meant the officers were pushing his brother in law around. He				

said eventually the officers took [REDACTED] to the ground and attempted to place him in handcuffs. He stated his brother in law wasn't resisting arrest but the officers had their knees in his back and were trying to pull his arms behind his back. [REDACTED] stated the officers did not punch, kick or strike [REDACTED] and eventually were able to get him in handcuffs. [REDACTED] said when [REDACTED] was handcuffed, the officers pulled him up by the handcuffs and were raising his arms up by the handcuffs. [REDACTED] said at that point [REDACTED] began screaming in pain. He said [REDACTED] was yelling that the officers were going to break his arms. [REDACTED] stated [REDACTED] wasn't resisting the officers or fighting at this point. [REDACTED] said he was then put into a police car so he was unable to see what next happened to [REDACTED]. He stated eventually he himself was released from handcuffs and sent away by the officers. He stated he then left. [REDACTED] said the whole incident started because one of the officers claimed to have found a small aluminum wrapper which he put on the ground and then couldn't find. [REDACTED] stated he did not know what was in the wrapper and did not know where the officer found it. Furthermore, [REDACTED] stated he had no idea what happened to it. PO Barolette stated in a PG interview that they observed [REDACTED] with drugs in his possession standing at the bus stop, at said time he made a U-turn to investigate. PO Barolette stated that when [REDACTED] saw them he removed drugs from his pocket and threw it onto the sidewalk. PO Barolette stated that he then jumped out of the RMP, grabbed [REDACTED] went through his pockets and retrieved a needle from his back pocket. PO Barolette stated that he also retrieved a piece of foil paper and he placed it on top of a staircase. PO Barolette stated that [REDACTED] then removed the piece of foil paper and swallowed it. PO Barolette stated that he then tried to handcuff [REDACTED] and he started to resist by folding his arms preventing him from handcuffing him. PO Barolette stated that he grabbed his arms, pulled them out and placed the cuffs on him. PO Barolette stated that they called for another sector at that time. PO Barolette stated that a Sergeant and other officers responded on the scene when [REDACTED] was already in handcuffs. PO Barolette stated he did not kick or twist [REDACTED] hands nor did he observe PO Collins do so. PO Barolette stated that he learned of [REDACTED] old injury (broken hand) after he returned from the hospital. The video retrieved from the arrest location is a significant distance away and is dark and blurry. No participant can be clearly identified from the video. There is also a wall obstructing the view of any interactions that MOS had with the [REDACTED]. The video shows the RMP pull up, Officers exit and approach what appears to be two (2) males. The Officers can be seen utilizing flashlights to see. Two (2) additional RMP's pull up on scene. One additional RMP pulls up. Officers appear to be using their flashlights to search the area where the males were stopped. A prisoner appears to be escorted into an RMP. RMP's begin leaving the location. [REDACTED] was interviewed twice during the course of the investigation. Both times he stated his injuries were caused by the male officer. He further stated that the female officer did not use any force against him. PO Collins TRI Report notes she utilized a forcible takedown to apprehend a fleeing suspect. PO Collins documented and utilized appropriate force to apprehend [REDACTED]. The force was neither unnecessary or excessive. Therefore, the Allegation of Force-Physical Force will be closed as Exonerated.

ATTACHMENT

1	 [REDACTED] LETTER'
2	 'CCRB'
3	 'PO BAROLETTE LETTER'

Reporting Officer:	Rank DT3	Name DIXON POLLYANN		Tax Reg. No. 941434		Command G54-GROUP 54 - FORCE
Reviewing Supervisor:	Manner of Closing 9 - UNSUBSTANTIATED	Date Reviewed 04/12/2019	Date of Next Review	Name CORRADO DERRICK		Supv. Tax No. 897238
Endorser:	Rank LCD	Name ETTLINGER STEVEN	Tax Reg. No. 901519	Command G54-GROUP 54 - FORCE	DateTime Reviewed 03/03/2019 00:08	Status Approved
	Comments APPROVED					
Endorser:	Rank DI	Name PARENTE MICHAEL	Tax Reg. No. 905618	Command G54-GROUP 54 - FORCE	DateTime Reviewed	Status Rejected

					03/04/2019 17:08	
	Comments UPDATE AS PER CO DIRECTION.					
Endorser:	Rank LCD	Name ETTLINGER STEVEN	Tax Reg. No. 901519	Command G54-GROUP 54 - FORCE	DateTime Reviewed 03/27/2019 18:09	Status Approved
	Comments APPROVED.					
Endorser:	Rank DI	Name PARENTE MICHAEL	Tax Reg. No. 905618	Command G54-GROUP 54 - FORCE	DateTime Reviewed 03/27/2019 18:22	Status Rejected
	Comments UPDATE AS PER CO DIRECTION.					
Endorser:	Rank LCD	Name ETTLINGER STEVEN	Tax Reg. No. 901519	Command G54-GROUP 54 - FORCE	DateTime Reviewed 04/04/2019 15:28	Status Approved
	Comments APPROVED.					
Endorser:	Rank DI	Name PARENTE MICHAEL	Tax Reg. No. 905618	Command G54-GROUP 54 - FORCE	DateTime Reviewed 04/05/2019 15:56	Status Approved
	Comments APPROVED. I CONCUR WITH THE OVERALL CASE DISPOSITION OF UNSUBSTANTIATED. THIS CASE WAS REVIEWED FOR SUPERVISORY DEFICIENCIES WITH NO SUPERVISORY MISCONDUCT NOTED. THERE ARE NO MISSING TEAM LEADER REVIEWS. CASE CLOSED AS UNSUB.					
Endorser:	Rank INS	Name MCGRATH THOMAS	Tax Reg. No. 905607	Command Z03-ZONE 3	DateTime Reviewed 04/09/2019 23:25	Status Approved
	Comments APPROVED					
Endorser:	Rank INS	Name CORRADO DERRICK	Tax Reg. No. 897238	Command Z03-ZONE 3	DateTime Reviewed 04/12/2019 15:05	Status Approved
	Comments APPROVE					